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Provision of November 30, 2023
Register of provisions
n. 558 of November 30, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the complaint filed by Mr. XX pursuant to
Article 77 of the Regulation, in which a violation of the rules on
the protection of personal data by Techno Security s.r.l. was reported;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The initiation of the procedure.

With the complaint submitted to this Authority on April 16, 2020, Mr. XX complained of a violation of the
rules on the protection of personal data by Techno Security s.r.l. (hereinafter "the Company"),
consisting of the failure to respond to the request for the exercise of rights made by him on February
29, 2020.

This request became necessary following the installation, by the Company, of a security system at the
complainant's residence, which, however, claimed that it was not adequate to ensure the integrity and
security of the processed data.

With the note of September 7, 2020 (prot. n. 32717), the Office invited the Company to provide
observations regarding the complaint and to comply with the complainant's requests.

The request, which remained unanswered, was reiterated, pursuant to Article 157 of the Code, on
November 11, 2020.

The Company responded with a communication dated November 14, 2020, stating "that it only has the
fiscal data of Mr. XX in its archives," which data were briefly reported.

In light of the above, the Office proceeded to notify the Company of the initiation of the sanctioning
procedure, pursuant to Article 166, paragraph 5, of the Code concerning the violation of Articles 12,
paragraph 3, and 15 of the Regulation (note of January 12, 2021).

The Company, despite being informed by the Office of the possibility of submitting defensive writings
or documents regarding the sanctioning procedure against it, did not provide any documentation in this
regard.

2. The outcome of the investigation.

As a result of the examination of the documentation produced and the statements made by the party
during the procedure, it appears that the Company, as the data controller, processed personal data
related to the complainant in a manner not compliant with the rules on the protection of personal data.
In this regard, it is emphasized that, unless the act constitutes a more serious offense, anyone who, in

a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code ("Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor").

On the merits, it emerged that the Company did not respond to the request for the exercise of rights made by the complainant pursuant to Article 15 of the Regulation, except on November 14, 2020, and only following the filing of the complaint and the initiation of the investigation by the Guarantor. The fulfillment thus occurred almost 9 months beyond the deadline set by the Regulation.

Such conduct is in contrast with the provisions of the Regulation governing the exercise of rights, with particular reference to Article 12, paragraph 3. This provision, as is known, establishes that the data controller is obliged to provide the data subject with access to their data and to all information requested by them pursuant to Articles 15 et seq. of the Regulation "without undue delay and, in any case, no later than one month from the receipt of the request itself" and that, within the same term, if it deems it necessary to apply the provided extension of two months due to "the complexity and number of requests," it must inform the data subject indicating the reasons; "if it does not comply with the request of the data subject, the data controller informs the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy."

3. Conclusions: unlawfulness of the processing carried out.

In light of the evaluations that precede, it is noted that it is not possible to overcome the objections notified by the Office with the act of initiation of the procedure, nor do any of the cases provided for by Article 11 of the Guarantor's regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

For the above reasons, therefore, the complaint filed pursuant to Article 77 of the Regulation is declared well-founded.

Regulation and, in the exercise of the corrective powers granted to the Authority pursuant to Article 58, paragraph 2, of the Regulation, the application of an administrative pecuniary sanction is ordered pursuant to Article 83, paragraph 5, of the Regulation.

The processing carried out by the company, with reference to the failure to respond to the access request submitted by the complainant, is indeed unlawful, as outlined above, in relation to Articles 12, paragraph 3, and 15 of the Regulation.

Therefore, in light of the corrective powers granted by Article 58, paragraph 2 of the Regulation, the application of an administrative pecuniary sanction is ordered pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981).

The violation, ascertained in the terms outlined in the reasoning, cannot be considered "minor," taking into account the nature, severity, and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (consideration 148 of the Regulation).

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been considered:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the exercise of rights and the delay in responding to the request were deemed relevant;
- the circumstance that the Company did not cooperate with the Authority during the proceedings;
- the absence of previous relevant violations committed by the data controller.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the revenues achieved and referred to the financial statements for the year 2022.

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €1,000.00 (one thousand) for the violation of Articles 12, paragraph 3, and 15 of the Regulation.

In this context, also considering the type of violation ascertained, which concerned the rights of the data subject, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, in the terms outlined in the reasoning, for the violation of Articles 12, paragraph 3, and 15 of the Regulation;

ORDERS

Techno Security s.r.l., represented by its legal representative pro tempore, with registered office in Rome, via M. Rapisardi No. 10, VAT No. 11110321004, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to pay the sum of €1,000.00 (one thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

the same Company to pay the sum of € according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 30, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL
Mattei